

DATA PROCESSING AGREEMENT (DPA) — SYNTHETIC EVAL FIXTURE V2 (EN)

This Data Processing Agreement (this “Agreement”) is entered into as of the Effective Date by and between the Customer and the Processor.

1. Designation of the Parties. The parties acknowledge that, for the purposes of this Agreement, the Customer is the Controller and the Processor is the Processor of Personal Data, each as defined in the GDPR. The Processor shall process Personal Data only on the documented instructions of the Controller.
2. Sub-processor Obligations. Where the Processor engages another processor for carrying out specific processing activities on behalf of the Controller, the same data protection obligations as set out in this Agreement shall be imposed on that other processor by way of a contract.
3. Sub-processor Authorisation. The Processor shall not engage another processor without prior specific written authorisation of the Controller.
4. International Transfers. The Processor shall not transfer Personal Data to a third country unless an adequate level of protection is ensured by way of an adequacy decision of the European Commission, the Standard Contractual Clauses (Module Two) set out in Commission Implementing Decision (EU) 2021/914, or any other lawful transfer mechanism recognised under Chapter V GDPR.
5. Data Subject Rights. The Processor shall handle requests from data subjects as appropriate in the ordinary course of its business, in accordance with its internal policies and applicable law.
6. Return or Deletion of Personal Data. Upon termination of the services relating to processing, the Processor shall, at the choice of the Controller, return all Personal Data to the Controller and delete existing copies within ninety (90) days of such termination, and shall provide written certification of such return or deletion upon request.